OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Affordable Housing Principles: questions for Shoalhaven's CEO on land, cost and the LSPS

Sent 12 October 2026 · To Shoalhaven City Council · Response requested by 2 November 2026

OPEN LETTER
To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 12 October 2026
Subject: Draft Affordable Housing Principles – the basis for the "What we heard" statement, and what Council has done with its land and its housing strategy this term
STATUS OF THIS LETTER
This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.
It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.
Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance,
Council has published a "What we heard" statement on the draft Affordable Housing Principles. These are my questions about what it rests on, and about the housing record of this term.
The statement says the draft principles were exhibited from 20 July to 17 August 2026 and drew 22 submissions. It says concerns about resources, environmentally sensitive land and short-term rental accommodation are "already being addressed", that Council "continues to use its land" to increase affordable rental housing, that a new Shoalhaven

Housing Strategy is being prepared, and that the principles will now be incorporated into the Local Strategic Planning Statement.

The submissions

Question 1. Will Council publish the summary of the 22 submissions and Council's response to them, as it did for the 2024 Strategy? If so, where and when? How many of the 22 supported the principles, and how many raised each of the three concerns the statement lists?

Question 2. Council's own description of the draft principles covers location and access, housing diversity, design quality, social inclusion, long-term affordability, partnerships and the use of government land. Which principle, or which provision of the Strategic Growth Principles, addresses (a) development in environmentally sensitive areas and (b) short-term rental accommodation?

Approval

Question 3. The statement says no major changes are proposed and the principles "will now be incorporated" into the LSPS. What resolution or delegation authorises that? When will the LSPS amendment be reported to the elected Council, and who decided that no major changes were needed?

Land and the Housing Strategy

Question 4. Which resolutions of this Council, since October 2024, have made land available for affordable rental housing? Council's December 2025 Taskforce papers promised a status report on the Action 1.1 land audit by mid-2026: where is it? Was any parcel in CL26.157 tested against that audit, or offered to a community housing provider, before it was listed for sale?

Question 5. What is the timetable, scope and funding for the new Shoalhaven Housing Strategy, and by what resolution was it commenced?

Cost and quality control

Question 6. The statement says housing is "not a core local government responsibility" but that Council continues to work on it. What did that work cost in officer hours and dollars in 2025/26, across the Strategy, the Taskforce, the Low-Cost Rental Initiative Working Group and the principles?

Question 7. What review and sign-off applies to a "What we heard" statement before it is published, and who approved this one? Separately, Council's February 2026 page describes the Coomea Street complex as 25 social homes and 14 affordable units, while the Office of Local Government guide describes it as 39 affordable units. Which is Council's position?

Documents relied on

- What we heard – Draft Affordable Housing Principles, Get Involved Shoalhaven
- Feedback sought on Draft Affordable Housing Principles, 24 July 2026
- Affordable Housing Action Taskforce papers, 8 December 2025
- Local Strategic Planning Statement – Shoalhaven 2040
- Council-led Affordable Housing on Operational Land guide (OLG), February 2026

• Minutes, Ordinary Meeting 28 July 2026 (CL26.157 / MIN26.240)

I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group.

No adverse finding has been made against any councillor, officer or member of the public, and none is implied. Every factual statement in this letter is drawn from Council's published pages, agendas and papers, and from the Office of Local Government's published guide.

Yours sincerely,

Stephen Prothero

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